

STAFF REPORT

Diamond Estates, Fourth Filing **Summation**

Final Subdivision Plat Process

CASE NUMBER(s): UDC-13-00035

FILE CODE: DMDE-FP

PREPARED BY: Brett Walker

MEETING March 4, 2013 – Planning Commission

DATES: March 11, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Final Plat Map
- Waiver Request Letter
- Complete Application
- Revised Plat Map (submitted on 2/12/2013)

RECOMMENDATION: The Planning and Development office recommends approval of the Final Plat and that the plat proceeds to the Governing Body.

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MEETING DATES: March 4, 2013 – Planning Commission
March 11, 2013 – City Council

OWNER : Randy Richardson 307-635-6166
2416 Wild Horse Tr.
Cheyenne, WY 82009

AGENT: Brad Emmons 307-637-6017
AVI, PC
1103 Old Town Lane, Suite 101
Cheyenne, Wyoming 82003

PROJECT:

WORK DESCRIPTIONS: 12 twinhome lots (6 buildings) and 2 multi-family lots (4-plexes)

LOCATION:

- (1) Legal Description: Final Plat for Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming
- (2) Located at the southwest intersection of Rio Verde Street and Pierce Avenue
- (3) Address: 4702 Rock Springs Street

SIZE: Total site: 2.37 acres (.35 acres of ROW)

CURRENT ZONING: HR-2 High Density Residential – Developing District

PROPOSED ZONING: MR-2 Medium Density Residential – Developing and HR-2 High Density Residential – Developing Districts

EXISTING LAND USE: Single-family and vacant

PROPOSED LAND USE: Twinhome and 4-plexes

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	MR-1	City
South	Vacant/Industrial	HR	County
East	Vacant	MR-2	City
West	Residential	HR-2	City

EXECUTIVE SUMMARY:

Final plat procedures are intended to create an accurate public record for the sale of lots, to guarantee construction of all public improvements according to the standards in the subdivision regulations, and to ensure that all lots are buildable lots according to the appropriate zoning prior to recording. The final plat process is applicable to any division of land in the City or within 1 mile of the City that has been acknowledged and approved by the City Council through the preliminary plat procedures

This Final Plat meets the required criteria outlined in 2.1.3.d, as follows:

1. The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.
2. The application meets any conditions or modifications of the approved preliminary plat.
3. The application meets the purposes, intent, and applicable standards of Article 4.

At its regular meeting Monday, January 7, 2013, the City of Cheyenne Planning Commission recommended approval of the above described preliminary plat by a unanimous vote of 6 to 0, with staff conditions 1 – 4. On January 28, 2013, the City Council acknowledged the preliminary plat with all 4 conditions. All conditions been met with the submittal of this Final Plat application. Those conditions were.

1. Address City Surveyor comments
2. Address BOPU comments
3. Submit Waiver Request to Engineering for 52' ROW and Intersection Spacing
4. Work with staff to establish ownership and maintenance of proposed detention pond

FINAL PLAT ANALYSIS:

Park Fees:

As outlined in Section 4.2.5.c.2&3 and Table 4-1, UDC, Park fees are calculated as follows:

Total Plat Area: 103,182 sqft

(less) ROW Area: 15,594 sqft

(equals) Park Fee Subject Area: 87,588 sqft or 2.01 acres (rounded up to 2.1)

Land Acquisition Fee = \$350 x 2.1 or \$735

Infrastructure Fee = \$350 x 2.1 or \$735

Total = \$1,470 payable in full at the time of the signing of the final plat.

Additionally, The Residential Enhancement Fee of \$400 per Dwelling Unit (DU) is payable at the issuance of a building permit.

This Final Plat is in substantial compliance with the acknowledged Preliminary Plat. It proposes twelve (12) twinhome lots, two (2) multifamily lots, and an extension of Sapphire Street (52' ROW) 300 feet to the east, connecting to Pierce Ave. To satisfy Condition 4 from the Preliminary Plat, the Final Plat replaces the single lot for stormwater detention "dedicated to the City of Cheyenne", with a drainage easement of the same dimensions, now contained within Lot 7, the eastern portion of which is intended for multifamily. This removes the City from any maintenance responsibility for area. The 30' access and drainage easement now runs along the northern edge of the two multifamily lots as well.

A Zone Change Request, from HR-2 to MR-2, was submitted in conjunction with a portion of the Preliminary Plat to accommodate the lot type. Of greater significance, however, is that this zone change also serves to enable aspects of the model design proposed for the twin-homes, primarily with regards to driveway access widths. Specifically, the applicant proposes to continue with the general pattern of access widths throughout the rest of Diamond Estates, namely 36' "ganged" driveways. The Zone Change request was approved by City Council on February 11, 2013, ***but will only take effect upon the approval and recordation of this Final Plat.***

Block Perimeters are 1,700 on North, 1,900 on south – both meet requirements set forth in Table 4-6. Within the subdivision boundaries, neither Block 1 nor Block 2 exceed 60% of the requirement, as given in Section 4.3.3.a., UDC (see attached aerial). Lots 1-6, Block 1 and Lots 1-6, Block 2, reflect the same use and pattern across right-of-way. Transition of twinhome to multifamily occurs along the rear lot lines on Block 2 (*ref.* Section 4.3.3.b.5). The zone change request reflects this principle.

While the proposed street types have not been explicitly called out, it is assumed that the most likely and appropriate type for Pierce Street is a Residential Type A, which is 60' ROW with a 7' tree lawn and 5' sidewalk. Sapphire Street, would be a Residential Type B, which is 56' ROW with a 7' tree lawn and 5' sidewalk. It's likely that the applicant will desire an attached sidewalk

along Sapphire to be consistent with the rest of the neighborhood and, indeed, a subdivision waiver to continue the street sections presently installed to this new development was requested by the applicant and approved by the Engineering Department (satisfying Condition 3 from the Preliminary Plat, see attached letter). The rolled curb along Sapphire would also be consistent with the rest of Diamond Estates. Pierce will be required to have a detached sidewalk. Pierce is completely unimproved south of Green River/Rio Verde with the exception of a 66" storm sewer line buried under the dirt road. Pierce will need to be improved to City standards for at least the portion that is adjacent to this subdivision

Ideally, intersections should be aligned or offset by at least 150' from intersecting streets (*ref.* Section 4.3.5.a.2 (a), UDC). Sapphire and Green River to the north are about 90' apart. A subdivision waiver from this requirement was requested by the applicant and approved by the Engineering Department, due to the constraints of the surrounding development already in place and potential problems that might arise if the intersection spacing was built at that interval (this satisfies Condition 3 from the Preliminary Plat, see attached letter).

The applicant submitted a letter explaining how the project is exempt from Section 4.4 in that the development is within 1320' (1/4 mile) of the Greenway system. The Greenway system is accessible within 800' feet of the southeast corner of this plat. Generally, given the context (urban residential) and zoning (MR-2 or HR-2), required open space is 750 sqft per DU or 8% of the gross area of the proposed development parcel, including lands platted as ROW, whichever is less. In this case, in addition to being exempt according to Section 4.4.2.b.1, UDC, this proposal can be described as residential infill development less than 10 acres and exempt according to Section 4.4.2.b.3, UDC, as well.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Surveyor: Jack Studley

1. The coordinates provided for the "TRUE POINT OF BEGINNING" appears to have a digit missing in the easting. Reads 61438.41 presently, but I believe should read 614384.41. This is required to be corrected.
2. The second set of coordinates provided are on the NW corner of the proposed subdivision. However, City Code requires that the second set of coordinates provided should be on the other end of "one course". In this case that would be either the NE or SW corners, neither of which is provided. So coordinates need to be provided for either the NE or SW corners. This is required.
3. In the LEGAL DESCRIPTION the distance in the closing course presently reads 192.14', which would be a misclosure, but the map shows a distance of 292.24', which closes correctly. This correction is required.
4. In my opinion the map boundary bearing orientation ought to read the same as the LEGAL DESCRIPTION boundary bearing orientations. For those of us in the industry it is easily understood; for John Q. Public it is confusing and disorienting. This is not a requirement, only a suggestion.
5. The Laramie County Clerk's Office is presently using a 1" x 4" block for a printed "FILING RECORD" to be attached to the plat at recording. They no longer use the old "FILING

RECORD” block as provided. I may suggest modifying that at this time. Although, I don’t think the City instructions have been modified to reflect this change yet either. I will follow up on this end as well.

NOTE: *Resolved. Revised Map submitted on 2/12/2013.*

Traffic Engineering: Mark Escobedo

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, section 3.1.1.c., UDC). The request for TIS Waiver was signed as required. The number of trips generated is less than the threshold amount which triggers a TIA or a TIS. The waiver request is hereby granted. If development occurs in a manner not in keeping with the land use assumptions contained in the Worksheet for Diamond Estates 4th Filing, A Transportation Impact Analysis or Study may be required.
2. A driveway approach for a local design street type should be flared (ref. Article 4, Section 4.3.4, UDC). Design standards for intersections of public streets can be utilized where high speed or frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles). **NOTE:** *Will be addressed at time of Building Permit/Site Plan Review.*
3. The Sight Distance Triangle at controlled intersections and access driveways shall maintain adequate, unobstructed sight distance in both directions from all accesses (ref. Article 4, Section 4.3.5.c., UDC). This triangular space is to be kept free from all obstructions to vision, including plant materials and vegetation, between the heights of 2.5 and 12 feet above the street grades.
4. Curb ramps meeting ADA Accessibility Standards shall provide a direct, non-diverted approach along the block, into the pedestrian crossing (ref. Article 4, Section 4.3.5.e, UDC).
5. Primary driveways into mixed use, commercial and employment centers shall be of sufficient length to allow vehicles to enter and not be impacted from on-site conflicts in which traffic backs out onto the street system. The access design, location, width and driveway length shall meet with the approval of the City Engineer (ref. Article 4, Section 4.3.6., UDC).
6. Lot access width shall be limited based upon the standards listed in Table 4-13 in the UDC (ref. Article 4, Section 4.3.6.c., UDC). The width for two-way Commercial or Mixed-use driveways is 24 to 36 feet. **NOTE:** *Will be addressed at time of Building Permit/Site Plan Review. This is not a commercial or mixed-use project.*
7. The builder and/or the developer are responsible for the construction of sidewalks (ref. Article 4, Section 4.5.2.b, UDC).
8. All mandatory signage and striping (ref. Article 4, Section 4.5.2.d, UDC) are to be shown in the project civil improvement drawings in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD).
9. All situations where a sidewalk or pedestrian facility intersects with an internal vehicle circulation shall be treated by one of the following manners: (1) the material, layout and grade of the pedestrian access shall be continuous as it crosses the grade of the driveway; or (2) a crosswalk differentiated from vehicle surfaces by different materials, texture or color, or a speed table (ref. Article 6, Section 6.2.3.a, UDC).

10. The number, location, dimension, and signing of accessible parking stalls shall be in accordance with the current ADA Standards for Accessible Design (ref. Article 6, Section 6.2.4.d, UDC).
11. Stall layout width and length and aisle width for 90 degree parking is 9.0 feet, 18.5 feet and 26.0 feet respectively (ref. Article 6, Section 6.2.8.b, UDC).
12. As part of the project, the applicant shall provide in sufficient detail the project's proposal to provide pedestrian and bicycle connections within the site to the local offsite pedestrian and bicycle destinations in close proximity to the project. This assessment shall describe the directness of the route to and from various parts of the project, the continuity of the pedestrian and bicycle system to reach these destinations and the design elements to assure safe access.
13. The adjacent final map provides 15 feet radii at the property corners for those lots adjacent to street intersections. This map should be required to do the same.

General Engineering: Nathan Beauheim

Waiver requests are approved. See attached letter dated 2/14/13.

MPO: Nancy Olson

The location of the intersection of Sapphire and Peirce does NOT meet the minimum intersection spacing. UDC Article 4- 4.19. Pierce should be paved and built to City Standards southward to the limits of this project. **NOTE:** *Resolved. See attached waiver request approval letter.*

The submitted Plat map is incomplete (plat does not meet the review criteria from UDC 2.1.2.d. 1 & 3) as it does not show adjacent streets and subdivision lot lines to the east. **NOTE:** *Resolved. Revised Map submitted on 2/12/2013.*

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: County Assessor, BOPU, Parks and Recreation, Drainage Engineer

AGENCIES AND REVIEWERS NOT RESPONDING: Cheyenne Light, Fuel & Power, Development

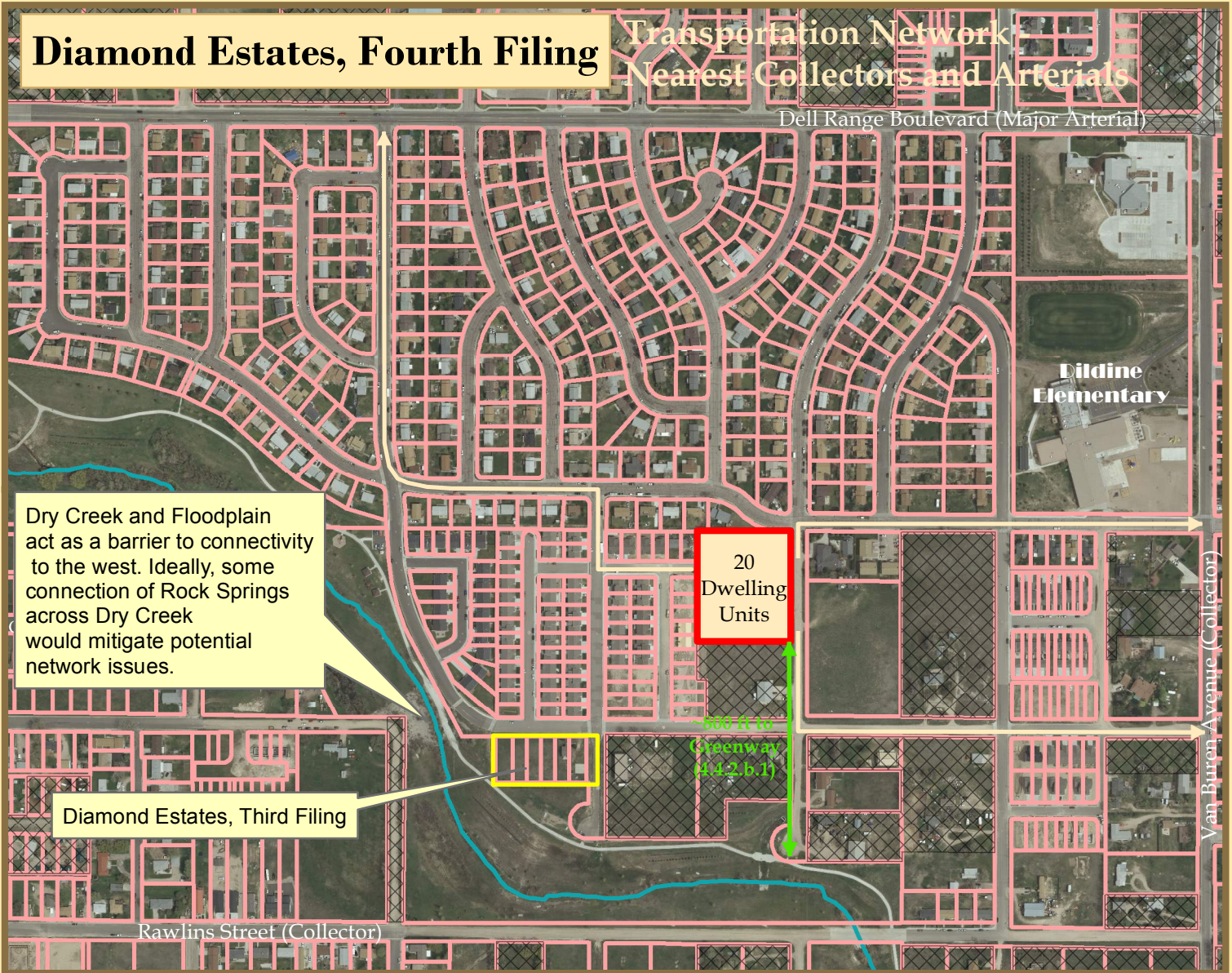
OTHER COMMENTS RECEIVED: None

Encl: Final Plan Map
Aerial Map
Waiver Request Approval

cc: Owner
Agent/Applicant
File

Diamond Estates, Fourth Filing

Transportation Network Nearest Collectors and Arterials



Applicant: Randy Richardson
Agent: Brad Emmons, AVI

21 Feb 2013
BRW

Application Number(s):
UDC-13-00035



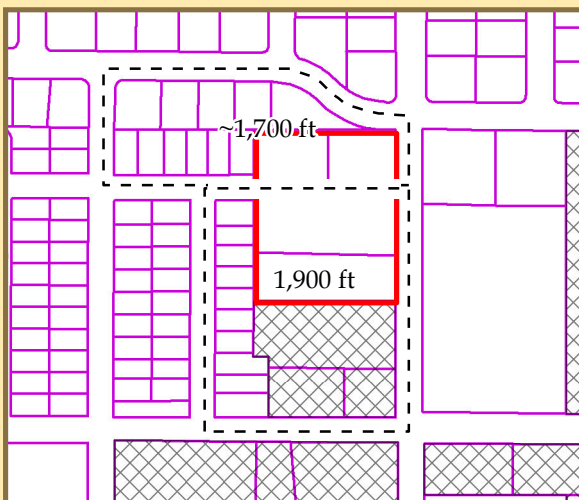
Platted Info
County Jurisdiction

1 in = 500 ft



Block Perimeters

1 inch = 400 feet



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data



Engineering
2101 O'NEIL AVENUE Room 206, Cheyenne, WY 82001
(Phone) 307-637-6268 (Fax) 307-637-6256

February 14, 2013

Brad Emmons
AVI, p.c.
1103 Old Town Lane, Suite 101
Cheyenne WY 82009

Re: Waiver requests for Diamond Estates – 4th Filing

Dear Brad:

Thank you for your waiver request letters dated January 28 and February 13, 2013. I have made the following determinations in accordance with the Cheyenne *Unified Development Code*:

1. It has generally been the policy of the City of Cheyenne Engineering Department to only change cross-sections for residential streets at intersections as, absent extenuating circumstances, having a variable width of right-of-way on a given block creates more problems than it solves. The waiver request to continue the existing cross-section of Sapphire Street from the west edge of Diamond Estates 4th Filing to Pierce Avenue is approved.
2. In considering where Sapphire intersects with Pierce, it is important to consider not only the spacing requirement from the Rio Verde/Green River intersection, but also possible future subdivisions of Tracts 317¹ and 318 of Sunnyside Addition – 7th Filing. Were Sapphire to be spaced the required 200' from the Rio Verde/Green River intersection and then be extended to the east, it would make 4117 Pierce and 4917-4933 Green River into double frontage lots, which is undesirable. Alternatively, if Sunny Ridge Lane was extended west from Polk to Pierce, it would bisect Tracts 317 and 318, continuing the redevelopment pattern of Sunnyside Addition. Under this second scenario, it would be better for Sapphire to be approximately halfway between the extension of Sunny Ridge Lane and Rio Verde/Green River, which the current submittal would accomplish. This waiver request is approved.

Please include this document with any future permit or development applications relating to right-of-way improvements at this site. If you have any questions or comments, please do not hesitate to contact me at (307) 638-4315 or via email at nbeauheim@cheyennecity.org

Sincerely,

Nathan Beauheim, P.E.
Acting City Engineer

¹ Tract 317 was replatted into Sunnyside Meadows in 1980; however the development contemplated has never been completed.

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR DIAMOND ESTATES, FOURTH FILING, A REPLAT OF A PORTION OF TRACT 316, SUNNYSIDE ADDITION, SEVENTH FILING, CHEYENNE, WYOMING (LOCATED WEST OF AND ADJACENT TO PIERCE AVENUE, NORTH OF ROCK SPRINGS STREET)."

WHEREAS, Randy Richardson has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, the owner, Randy Richardson, of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration and has been recommended for approval to the governing body and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

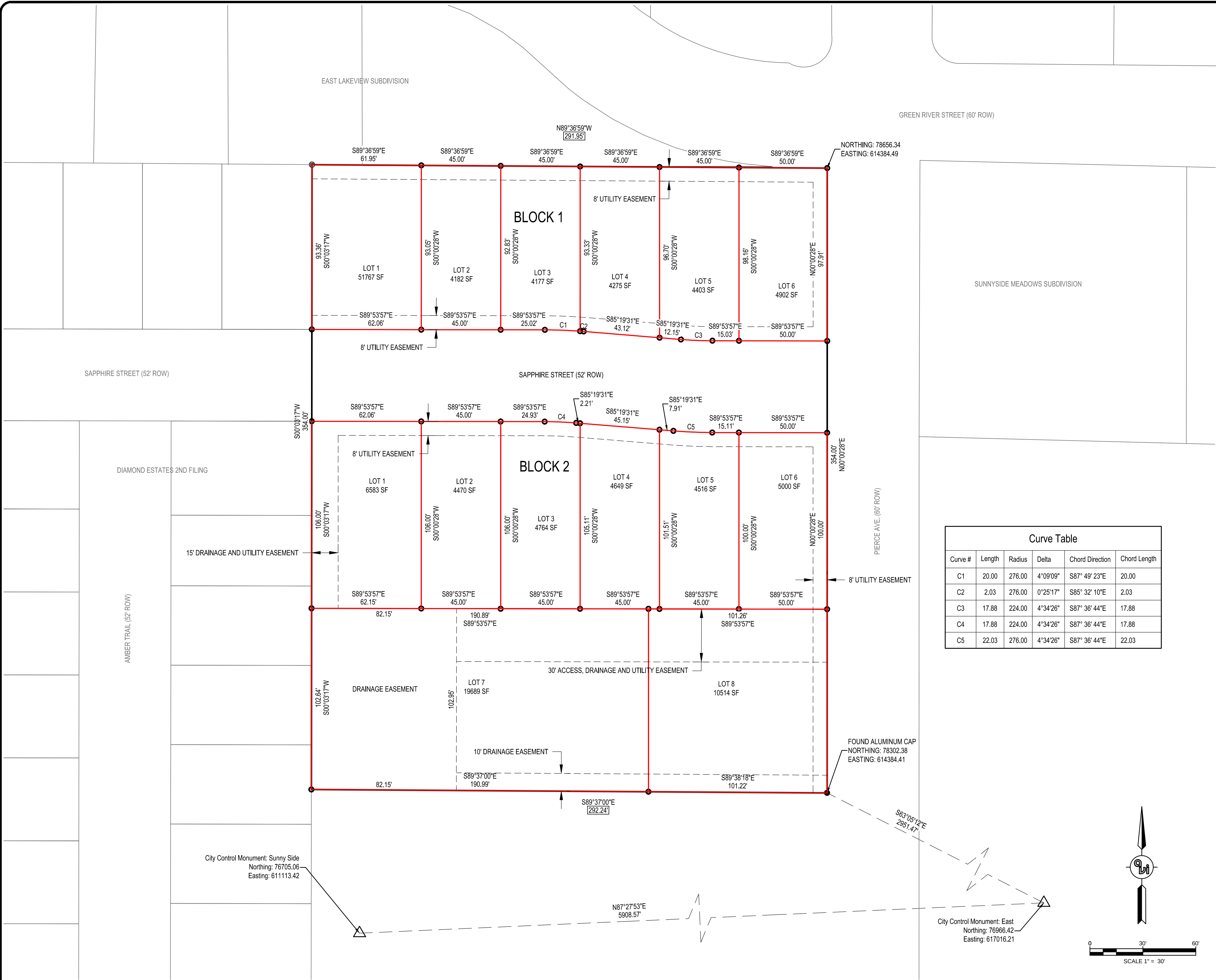
_____, 2013.

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

H:\3440 Diamond Estates 4th Filing\planets\final plat\Final Plat.dwg Feb 21, 2013 12:03pm cphinson



LEGEND

- CITY CONTROL POINT
- SET 2" ALUMINUM CAP STAMPED AVI pc PLS 12045
- FOUND ALUMINUM CAP
- FOUND IRON PIPE

DEDICATION

KNOW ALL MEN BY THESE PRESENTS THAT: THE UNDERSIGNED, RANDY RICHARDSON, DOES HEREBY DECLARE THIS PLAT OF SAID LANDS TO BE HIS FREE ACT AND DEED IN ACCORDANCE WITH HIS DESIRES, AND DOES HEREBY DEDICATE THE PUBLIC ROAD RIGHT-OF-WAYS SHOWN HEREON TO THE PUBLIC AND GRANT THE EASEMENTS SHOWN HEREON FOR THE PURPOSES INDICATED.

RANDY RICHARDSON

BASIS OF BEARINGS:

COORDINATES AND DISTANCES ARE BASED ON THE CITY OF CHEYENNE CONTROL SYSTEM. BASIS OF BEARING BETWEEN CITY CONTROL MONUMENTS 'EAST' AND 'SUNNY SIDE' NORTH 87°27'53" EAST A DISTANCE OF 5908.57 FEET, WITH ALL BEARING HEARON RELATIVE THERE TO.

ACKNOWLEDGEMENTS

STATE OF _____
COUNTY OF _____

THE FOREGOING INSTRUMENT WAS ACKNOWLEDGED BEFORE ME BY RANDY RICHARDSON, ON THIS ____ DAY OF _____, 20____, WITNESS MY HAND AND OFFICIAL SEAL.

NOTARY PUBLIC, LARAMIE COUNTY, WY

MY COMMISSION EXPIRES: _____

APPROVALS

APPROVED BY THE CHEYENNE PLANNING COMMISSION THIS ____ DAY OF _____, 20____.

DEVELOPMENT DIRECTOR

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, THIS ____ DAY OF _____, 20____.

MAYOR

CITY CLERK

LEGAL DESCRIPTION

A PORTION OF TRACT 316, SUNNY SIDE ADDITION, SEVENTH FILING, AND BEING SITUATED IN THE NE $\frac{1}{4}$ OF SECTION 27, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING AT THE CITY CONTROL POINT 'EAST', THENCE N63°05'12"W A DISTANCE OF 2951.47' TO A FOUND ALUMINUM CAP, SAID ALUMINUM CAP BEING THE TRUE POINT OF BEGINNING;
THENCE N00°00'28"E A DISTANCE OF 354.00' TO A POINT;
THENCE N89°36'59"W A DISTANCE OF 291.95' TO A POINT;
THENCE S00°03'17"W A DISTANCE OF 354.00' TO A POINT;
THENCE S89°37'00"E A DISTANCE OF 292.24' TO THE TRUE POINT OF BEGINNING;

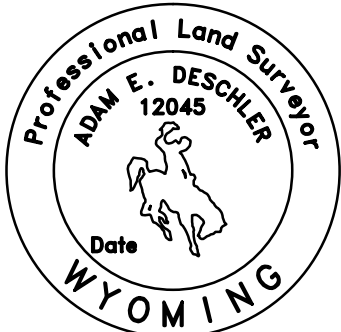
SAID PARCEL CONTAINS 2.37 ACRES $\pm$

NOTES:

1. A 24" BY 5/8" REBAR WITH A 2" ALUMINUM CAP STAMPED AVI pc PLS 12045 WILL BE PLACED AT ALL PROPERTY BOUNDARY CORNERS, INCLUDING BUT NOT LIMITED TO, POINTS OF CURVATURE, POINTS OF TANGENCY AND ANGLE POINTS.

CERTIFICATE OF SURVEYOR

I ADAM E. DESCHLER, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THIS SURVEY WAS PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD AND FROM NOTES OF A FIELD SURVEY CONDUCTED ON BEHALF OF AVI P.C. BY PAUL REID, P.L.S. # 2927, CARL CARMICHAEL, P.L.S. #10838 AND ME OR UNDER MY DIRECT SUPERVISION DURING THE PERIOD OF 1998 TO 1999 AND 2009 TO 2011, AND THAT THE MONUMENTS ARE SET OR FOUND AS SHOWN AND THAT THIS PLAT CORRECTLY REPRESENTS SAID SURVEY OF THE LAND DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.



FINAL PLAT OF DIAMOND ESTATES FOURTH FILING

A REPLAT OF A PORTION OF TRACT 316, SUNNYSIDE ADDITION, SEVENTH FILING, AND BEING SITUATED IN THE NE $\frac{1}{4}$ OF SECTION 27, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED NOVEMBER, 2012

NO.	REVISION	DATE

PREPARED FOR:
RICHARDSON CONSTRUCTION, INC.
101 LEXINGTON AVE
CHEYENNE, WY 82007
307.635.6166

PROJECT:
DIAMOND ESTATES
FOURTH FILING

DRAWING TITLE:
FINAL PLAT



DATE:	NOV 2012
DRAWN BY:	CRJ
DESIGNED BY:	BE
CHECKED BY:	

JOB NO.:
3340

DRAWING NO. 1 OF 1